Relief Suman vs State Of Nct Of Delhi on 14 May, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 4293/2024 & CRL.M.A. 35143/2024 INTERIM RELIEF

SUMAN

Through: Mr
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versus

STATE OF NCT OF DELHI

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HON'BLE MR. JUSTICE RAVINDER DUDEJA

ORDER

% 14.05.2025

1. This is an application under Section 482 of Bhartiya Nagarik Suraksha Sanhita ["BNSS"], 2023, filed on behalf of the applicant for the grant of anticipatory bail in case FIR No. 198/2023, under Section 420/34 IPC, lodged at PS Special Cell, New Delhi.

2. Learned counsel appearing for the applicant submits that applicant is a villager and she is neither technically advanced nor is aware of modern technical manoeuvres, as alleged in the FIR. Even as per the own case of the complainant, it failed to respond to the chargeback requests of its customers within stipulated time prescribed under the National Payment Corporation of India ["NPCI"] guidelines, owing to which, the amounts were credited This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/06/2025 at 03:10:32 twice in the targeted accounts. It is argued that assuming the allegations in the FIR to be true, complainant can, at best, set up a civil case for the recovery of excess amount and by no stretch of imagination, it can implicate hundreds of customers in a criminal case for its own negligence. It is stated that there seems to be a concerted effort on behalf of the higher ups of the company to save their own skins by lodging the FIR. It is argued that the ultimate call to transfer the invested amount remained with the company, which was to be exercised after verification of records and it is not the case of complainant that accused persons have not got the chargeback/refunds in accordance with the NPCI guidelines.

3. Learned counsel further submits that the FIR has been lodged after a delay of around five months to save the officers of the complainant company from their liability. It is submitted that as per complainant, there was a system error, and due to which, complainant did not respond to the chargeback request, and thus that being so, it is not a case of inducement and therefore, ingredients of offence under Section 420 IPC are not attracted. The evidence is primarily documentary in nature, and therefore, no custodial interrogation of the applicant is required. He further submits that applicant has already joined the investigation and is still ready and willing to join the same.

4. Bail application has been vehemently opposed by the learned ASC, arguing that a huge amount has been cheated by taking advantage of the technical glitch. It is submitted that applicant did not join the investigation despite grant of protection by this Court. Cheated amount is yet not recovered and the custodial interrogation of the applicant is required for unearthing the conspiracy.

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5. In rebuttal, learned counsel for the applicant states that applicant met the IO at Jodhpur and joined the investigation. However, learned ASC submits that IO had gone to Jodhpur but the sister of the applicant met him and applicant did not join the investigation and that the affidavit filed by the applicant in this regard is a false affidavit.

6. The FIR in this case has been registered under Section 420/120-B IPC at the instance of the complainant company, which is engaged in the business of peer to peer lending and is an online platform providing service of borrowing and lending money to its customers under the name and style of "LENDBOX". Complainant entered into a sourcing service agreement with MOBIWIK Systems Ltd., which provides E-wallet services for availing its services of sourcing of lender/ customer/ investor relations. The complainant integrates their service on the online platform of Mobikwik. The user of Mobikwik has the option of investigating their money through the complainant's platform and the complainant pays interest on the amount invested by the investors/customers, as mutually agreed by the complainant and the investor. The investment can be made through UPI, debit card and net-banking and these investments were governed by NPCI. Once a chargeback is received with NPCI portal, the same is forwarded for response/verification, if no response is received within the stipulated period of 40 days, then such chargebacks are deemed to be approved and paid to customer/investor's account.

7. In March 2023, complainant company became aware that several of the users/customers/investors, who deposited money with them, raised request for return of the money on the same day i.e. the date of deposit itself. Since the remittances were made using UPI, such transactions are governed This is a digitally signed order.

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by NPCI.

8. It was found that simultaneous to the request placed through Mobikwik for the return of the money, the accused persons were also placing request for refund of the money, they also raised request for chargeback with NPCI, alleging that money so deposited has not been returned or that the same was deducted from their account without their consent. While the complainant promptly returned the money to the accused persons upon receipt of request, there was no reason for them to approach the NPCI.

9. Due to system error, accused persons became aware that complainant had not disputed the chargeback requests, and therefore, they started undertaking multiple transactions. Even though, the money was received from the complainant, the accused started raising fraudulent chargeback requests.

10. Thus, in this manner, accused persons, for every transaction undertaken by them, not only received the money from the complainant upon request, but at the same time, were also paid through the bank account of the complainant, owing to chargeback request. A-systemic fraud was perpetrated in this manner, as many as 457 persons and complainant has been defrauded of Rs. 10,54,79,040/- from the period 05.12.2022 to 19.03.2023.

11. So far as the present applicant is concerned, she has claimed 36 successful chargebacks and the amount of these chargebacks is Rs. 32,53,383/- from 19.01.2023 to 17.03.2023. Applicant is therefore actively involved in the wrongful loss to the complainant company and earned wrongful gain for herself.

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12. During the pendency of the bail application, applicant was granted interim protection subject to her joining the investigation. Admittedly, she did not join the investigation, inasmuch as, as per order dated 17.02.2025, learned counsel for the petitioner himself submitted before the Court that he has also tried to reason with the petitioner to join the investigation, but for the reasons best known to her, she is not keen to join the investigation. Even though, the learned counsel now claims that subsequently petitioner joined the investigation at Jodhpur, but the same has been disputed by the State.

13. Admittedly, the recovery of the cheated amount is yet not affected. Applicant would be required for detailed interrogation to unearth the modus- operandi and the conspiracy for which her custodial interrogation may be necessary. The allegations are serious in nature. In my view, this is not a fit case for the grant of pre-arrest bail to the applicant/accused.

14. The application is accordingly dismissed.

15. It is clarified that nothing stated in this order shall tantamount to an expression on the merits of the case.

RAVINDER DUDEJA, J.

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